

26NNCV03204 26NNCV03204

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Case Number: 26NNCV03204 Hearing Date: July 28, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

STATE FARM MUTUAL AUTOMOBILE

INSURANCE COMPANY,

Plaintiff,

vs.

ORLANDO FIERROS; NEW

OPPORTUNITITES TRUCKING INC; Does I through V, inclusive,

Defendants.

Case

No.:

26NNCV03204

Hearing

Date:

July

28, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

MOVING PARTY: Defendant Orlando Fierros

RESPONDING PARTY: Plaintiff State Farm Automobile Insurance
Company

The Court considered
the moving papers and opposition filed in connection with the instant motion.

BACKGROUND

On April 24, 2026,
Plaintiff State Farm Automobile Insurance Company ("Plaintiff") filed a
complaint against Defendants Orlando Fierros ("Fierros") and New Opportunities
Trucking, Inc. (collectively, "Defendants") for property damages and uninsured
motorist bodily injury.

On June 29, 2026,
Fierros filed the instant motion to quash service of summons and complaint.

On July 10, 2026,
Plaintiff filed an opposition.

As of July 22, 2026,
Fierros has not filed a reply.

LEGAL STANDARD

"Service of process, under
longstanding tradition in our system of justice, is fundamental to any
procedural imposition on a named defendant." (AO Alfa-Bank v. Yakovlev (2018) 21
Cal.App.5th 189, 202 [internal citations omitted].) "To establish personal

jurisdiction, compliance with statutory procedures for service of process is essential.” (Kremerman v. White

(2021)

71 Cal.App.5th 358, 371.) Defendant’s knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett,(1988) 200 Cal.App.3d 1457, 1466.)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her” that results from lack of proper service. (Code of Civ. Proc., § 418.10, subd. (a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

Once a challenge to a court’s personal jurisdiction is filed, “the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response.” (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

DISCUSSION

Fierros moves to quash service of the summons and complaint on the grounds that Plaintiff failed to properly serve Defendants.

“A

summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery.” (Code Civ. Proc., § 415.10, sub. (a)(1).) “The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements.” (Floveyor Internat.,

Here,

Fierros declares Plaintiff did not serve him with a copy of the summons and complaint. (Fierros Decl., ¶ 2.) Plaintiff purports to have left a copy of the summons and complaint with an individual at Fierros' household. (Fierros Decl., ¶ 3.) Fierros states that he never received the summons and complaint from anyone at this address, nor has he received a copy of the summons and complaint via mail at his current or former address. (Fierros Decl., ¶ 4.) Further, Fierros explains that he spoke with Plaintiff's counsel who relayed that she did not possess proof of service or confirmation of mailing the summons and complaint. (Fierros Decl., ¶ 6.)

In

opposition, Plaintiff argues it properly served Fierros by substituted service. Before resorting to substituted service, a plaintiff must demonstrate reasonable diligence to serve the defendant by personal service. (Code Civ. Proc., § 415.20, subd. (b).) "Two or three attempts to personal serve a defendant at a proper place ordinarily qualifies as 'reasonable diligence.'" (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 389.) Once a plaintiff demonstrates reasonable diligence, a plaintiff may serve via substituted service "by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).)

Plaintiff's

counsel attests that her office served the summons and complaint on Fierros at the address listed for him on the Traffic Crash Report created by the State of California, Department of California Highway Patrol following the accident underlying this action. (Kim Decl., ¶ 3.) Plaintiff's counsel attaches a copy of the Traffic Crash Report showing Fierros' address as 2043 W 42nd Street, Los Angeles, California 90062. (See Kim Decl., Exh. A.) Plaintiff's counsel provides proof of service of the summons and complaint, reflecting

service at the same address. (See Kim Decl., Exh. B.) The proof of service reflects service by substituted service on May 30, 2026, on "Juan 'Doe' (refused last name), uncle/co-occupant." (Kim Decl., Exh. B.) The proof of service states that service was made on a competent member of the household at least 18 years of age at the dwelling house or usual place of abode of the party, and that the service agent informed Juan "Doe" of the general nature of the papers. (Kim Decl., Exh. B.) The service agent purports to have mailed by first-class, postage prepaid copies of the summons and complaint on May 30, 2026 to the address where the substituted service was made. (Kim Decl., Exh. B.) Further, the service agent attests that service attempts were made on May 27, 2026, May 28, 2026, and May 29, 2026, before the substituted service on May 30, 2026, but there was no answer at the residence. (Kim Decl., Exh. B.) Plaintiff's counsel attests that she advised Fierros she would provide a courtesy copy of the summons and complaint to his email address, but Fierros declined. (Kim Decl., ¶ 5.)

The

Court finds that Plaintiff complied with the statutory requirements for substituted service. The three service attempts made by Plaintiff's agent for service of process meets the standard for reasonable diligence. (American Express, supra, 199 Cal.App.4th at p. 389.) Plaintiff's agent for service of process attests to have served the summons and complaint in compliance with the statutory requirements of Code of Civil Procedure section 415.20, subdivision (b). (Kim Decl., Exh. B.) Therefore, Plaintiff's filing of a proof of service with the Court gives rise to a presumption that service was proper. (American Express, supra, 199 Cal.App.4th at p. 389.)

Further,

the Court finds that Fierros fails to overcome the rebuttable presumption that service was proper. A defendant's mere self-serving attestation is generally insufficient on its own to overcome the presumption, absent contrary evidence. (Yolo County Dept. of Child Support Services v. Myers (2016) 248 Cal.App.4th 42, 49.) A defendant must produce evidence to support that he was not served. (American Express, supra, 199 Cal.App.4th at p. 390.) Here, Fierros fails to provide any supporting evidence to show that the proof of service is invalid, or that he never received the summons and complaint, aside from his own self-serving attestation.

Therefore,

the Court DENIES Fierros' motion to quash service of summons and complaint.

CONCLUSION

Based on the foregoing, the Court DENIES Defendant Orlando Fierros' motion to quash service of summons and complaint.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Sarah
J. Heidel

Judge
of the Superior Court